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Case Name: *Sandoval-Orozco v. Northwest Landscape Maintenance Company*
Case No.: 24CV445484

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Before the Court is Plaintiff's motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 10, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

[N]on-exempt, hourly paid employees who worked for Defendant Northwest Landscape Maintenance Co. in California at any time during the Class Period [August 20, 2020 to August 31, 2024].

(Declaration of Harout Messrelian in Support of Motion for Preliminary Approval, Ex. 1

(“Agreement”), ¶¶ 5, 7.) The settlement includes a subset PAGA class of Aggrieved

Employees, defined as: “all person who worked for Defendant as non-exempt, hourly paid employees in California at any time during the PAGA Period [May 16, 2023 through August 31, 2024].” (*Id.* at ¶¶ 20, 22.)

Defendant will pay a gross settlement amount of \$600,000, and this amount includes: attorney fees of up to 35 percent of the gross settlement amount (\$210,000); litigation costs not to exceed \$15,000; a PAGA penalties allocation of \$30,000 (75 percent of which will be paid to the LWDA and 25 percent of which will be paid to PAGA Employees as individual PAGA payments); a service payment of up to \$10,000 to Plaintiff; and settlement administration costs up to \$6,950. (Motion, pp. 3–4; Agreement, ¶¶ 2, 8, 15, 18, 23, 34, 43.) The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of pay periods worked. (Agreement, ¶ 45.) The Agreement provides that ILYM Group, Inc. (“ILYM”) will serve as settlement administrator. (*Id.* at ¶ 34.) The Court approves and appoints ILYM as settlement administrator. The Agreement provides that any funds from uncashed settlement checks will be transmitted to Children’s Hospital Los Angeles. (*Id.* at ¶ 62.) The Court approves the *cy pres* designation.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “all claims, rights, demands, liabilities, and causes of action, reasonably arising from, or reasonably related to, the same set of operative facts as those set forth in the operative Complaint in the Action during the Class Period[.]” (Agreement, ¶¶ 29, 31.)_Aggrieved Employees will be deemed to release Defendant and related entities and

persons “any and all claims, demands, rights, liabilities and causes of action under the Private Attorneys General Act, California Labor Code §§ 2698, et seq., that were alleged or could reasonably have been alleged based on the same facts alleged in the operative Complaint, the PAGA Notice (and any amendments thereto) and ascertained in the course of the Action, arising during or with respect to the PAGA Period.” (*Id.* at ¶¶ 30, 31.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting Plaintiff’s motion for preliminary approval, the Court approved ILYM as settlement administrator. On January 22, 2026, Defendant delivered class data to ILYM, and the Class List contained 154 Class Members and 94 Aggrieved Employees. (Declaration of Garvin Brown of ILYM (“Brown Decl.”) ¶ 5.) On February 5, 2026, ILYM mailed Class Notices to all individuals on the Class List. (*Id.* at ¶ 7 and Ex. A.) The deadline to request an exclusion, submit a written objection, or submit a dispute was March 22, 2026. (*Id.* at ¶¶ 11–13.) As of the date of Mr. Brown’s declaration, May 12, 2026, ILYM had received zero requests for exclusion, zero objections, and zero workweek disputes. (*Ibid.*) ILYM estimates the average individual class payment will be approximately \$2,226.39, and the average individual PAGA payment will be approximately \$79.79. (*Id.* at ¶¶ 17, 19.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections, it finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of \$10,000. Plaintiff has provided a declaration detailing his participation in this litigation and the risks he undertook by being the named-plaintiff. The

Court finds that a service award is justified and the amount requested is reasonable. The service award is approved in the amount requested.

Plaintiff's counsel seeks an attorney fee award of \$200,000 (one third of the gross settlement amount, and less than the \$210,000 maximum set by the Agreement). (Memorandum, pp. 6:18–15:13; Declaration of Harout Messrelian in Support of Motion for Final Approval, ¶¶ 8–17; Declaration of Maralle Messrelian in Support of Motion for Final Approval, ¶¶ 8–9.) Plaintiff's counsel represents that the lodestar for this action is \$108,975, based on 145.3 hours billed at \$750 per hour. This results in a multiplier of 1.8, which is within the range of multipliers generally approved by California courts. The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount.

Plaintiff's counsel requests reimbursement of litigation costs in the amount of \$10,185.38 and they provide an itemized list in support. (Memorandum, p. 15:15–23; Declaration of Harout Messrelian in Support of Motion for Final Approval, ¶ 18 and Ex. F.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$6,950. (Brown Decl., ¶ 20 and Ex. B)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 10, 2027 at 2:30 p.m. in Department 11.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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